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Recording Requested by:
When Recorded Mail to:
Anthony W. Austin, Esq.
Fennemore Law
2394 E. Camelback Rd., Suite 600
Phoenix, AZ 85016

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SPACE ABOVE THIS LINE FOR RECORDERS USE

TS#: BDS IV v Haven @ Towne Center

Loan #: Haven at Towne Center LLC

NOTICE OF TRUSTEE'S SALE

The following legally described trust property will be sold, pursuant to the power of Sale under that certain Deed of Trust dated **6/28/2022** and recorded on **6/30/2022** as Instrument # **20220543817**, and **UCC Financing Statement** recorded **07/07/2022** as Instrument No. **20220555965** in the office of the County Recorder of **Maricopa** County, Arizona, **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AND WILL OCCUR** at public auction to the highest bidder at **the main entrance of the Superior Court Building, Maricopa County, 201 West Jefferson, Phoenix, AZ 85003**, on **01/26/2027** at **11:30 AM** of said day:

See Attached Exhibit "A" Legal Description and Exhibit "B" UCC Personal Property

Pursuant to A.R.S. § 47-9604(A)(2) and, with respect to fixtures, § 47-9604(B)(2), Beneficiary has elected to proceed against the real property and the personal property and fixtures described in Exhibit B in accordance with its rights and remedies with respect to the real property. At the date, time and place stated in this Notice, Trustee will sell, together with the real property described in Exhibit A, all of Trustor's right, title and interest in the personal property and fixtures described in Exhibit B in which Beneficiary holds a security interest under the Deed of Trust.

ACCORDING TO THE DEED OF TRUST OR UPON INFORMATION SUPPLIED BY THE BENEFICIARY, THE FOLLOWING INFORMATION IS PROVIDED PURSUANT TO A.R.S. SECTION 33-808(C):

Street address or identifiable location: **17600 N. 79th Avenue**
Glendale, AZ 85308

A.P.N.: **200-43-010D**
Original Principal Balance: **$74,975,000.00**

Name and address of original trustor:
(as shown on the Deed of Trust)
Haven at Towne Center LLC, a Delaware limited liability company
4455 E. Camelback Road, Suite D140
Phoenix, Arizona 85018

Name and address of beneficiary:
(as of recording of Notice of Sale)
BDS IV Mortgage Capital J LLC, a Delaware limited liability company
300 Park Avenue, 17th Floor
New York, NY 10022

TS#: BDS IV v Haven @ Towne Center Loan #: Haven at Towne Center LLC

NOTICE OF TRUSTEE'S SALE

The successor trustee appointed herein qualifies as trustee of the Trust Deed in the trustee's capacity as a member of the Arizona State Bar as required by ARS Section 33-803, Subsection A(2). Name of Trustee's Regulator: Arizona State Bar Association

NAME, ADDRESS & TELEPHONE NUMBER OF TRUSTEE:
(as of recording of Notice of Sale)
Anthony W. Austin, Esq.
Fennemore Law
2394 E. Camelback Rd., Suite 600
Phoenix, AZ 85016
Phone: 602-916-5000

Sale Info: www.mkconsultantsinc.com/trustees-sales/

Dated this 21st day of October, 2026

ANTHONY W. AUSTIN, ESQ., SUCCESSOR TRUSTEE

State of Arizona)
ss
County of Maricopa)

On this 21st day of October, 2026, Notary Public, personally appeared **Anthony W. Austin, Esq.** personally known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.
IN WITNESS WHEREOF I hereunto set my hand and official seal.

Karen Turpin (seal)
NOTARY PUBLIC

My Commission Expires: 6/19/2029

KAREN TURPIN
Notary Public - Arizona
Maricopa County
Commission # 684780
My Comm. Exp. June 19, 2029

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EXHIBIT "A" LEGAL DESCRIPTION

PARCEL NO. 1:

That portion of the West half of Section 35, Township 4 North, Range 1 East of the Gila and Salt River Base and Meridian, Maricopa County, Arizona, described as follows:

COMMENCING at the North quarter corner of said Section 35, the Northwest corner of which bears North 89 degrees 47 minutes 42 seconds West, 2626.13 feet, as recorded on the Amended Map of Dedication and Grant of Easements at Book 349 of Maps, Page 43, records of Maricopa County, Arizona;

THENCE North 89 degrees 47 minutes 42 seconds West, along the North line of said Section 35, a distance of 79.20 feet;

THENCE South 00 degrees 12 minutes 18 seconds West, a distance of 67.00 feet to a point on the South right of way of Union Hills Drive, as recorded in Book 349 of Maps, Page 43, records of Maricopa County, Arizona;

THENCE South 44 degrees 47 minutes 42 seconds East along said right of way, a distance of 55.59 feet to a point on the West right of way of 79th Avenue, as recorded in Book 349 of Maps, Page 43, records of Maricopa County, Arizona, said point being on a non-tangent curve right having a radial bearing of North 88 degrees 31 minutes 45 seconds West;

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THENCE along said 79th Avenue right of way and along said curve right having a radius of 457.50 feet, a central angle of 03 degrees 26 minutes 56 seconds, an arc distance of 27.54 feet;

THENCE continuing along said 79th Avenue right of way and said curve right having a radius of 457.50 feet, a central angle of 31 degrees 18 minutes 04 seconds, an arc distance of 249.94 feet to a point of tangency;

THENCE South 36 degrees 13 minutes 15 seconds West along said right of way, a distance of 238.85 feet to a point of curvature left;

THENCE continuing along said 79th Avenue right of way and said curve left having a radius of 870.45 feet, a central angle of 46 degrees 02 minutes 09 seconds, an arc distance of 699.39 feet to a point of tangency;

THENCE continuing along said 79th Avenue right of way South 09 degrees 48 minutes 54 seconds East, a distance of 517.21 feet to a point of curvature right;

THENCE continuing along said 79th Avenue right of way on said curve right having a radius of 457.50 feet, a central angle of 09 degrees 59 minutes 01 seconds, an arc distance of 79.72 feet to a point of tangency;

THENCE continuing along said 79th Avenue right of way South 00 degrees 10 minutes 07 seconds West, a distance of 199.75 feet to a point of curvature right;

THENCE continuing along said 79th Avenue right of way on said curve right having a radius of 2457.50 feet, a central angle of 16 degrees 04 minutes 46 seconds, an arc distance of 689.67 feet to a point on the curve, said point being the TRUE POINT OF BEGINNING;

THENCE continuing along said 79th Avenue right of way on said curve right having a radius of 2457.50 feet, a central angle of 04 degrees 22 minutes 02 seconds, an arc distance of 187.32 feet to a point of tangency;

THENCE continuing along said 79th Avenue right of way, South 20 degrees 36 minutes 55 seconds West, 353.53 feet;

THENCE leaving said 79th Avenue right of way, North 89 degrees 47 minutes 42 seconds West, along a line parallel to the North line of the West half of said Section 35, a distance of 1066.87 feet to a point on the East right of way for State Route 101, as recorded in Document No. 88-105515, records of Maricopa County, Arizona;

THENCE North 20 degrees 17 minutes 56 seconds East, along said East right of way, a distance of 542.22 feet;

THENCE South 89 degrees 47 minutes 42 seconds East, along a line parallel to the North line of the West half of said Section 35, a distance of 1062.45 feet of the TRUE POINT OF BEGINNING.

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PARCEL NO. 2:

The non-exclusive rights of access for the purposes of maintaining the wall as contained in Easement and Maintenance Agreement, recorded October 09, 2001 as 2001-0936992 of Official Records.

APN: 200-43-010D

EXHIBIT B

to UCC-1 FINANCING STATEMENT
between
HAVEN AT TOWNE CENTER LLC,
a Delaware limited liability company, as
Debtor and
BDS IV MORTGAGE CAPITAL W LLC, a Delaware limited liability company,
as Secured Party

This UCC-1 Financing Statement is filed in connection with that certain Deed of Trust, Assignment of Leases and Rents, Security Agreement and Fixture Filing (the "**Security Instrument**"), made by Debtor for the benefit of Secured Party covering the estate of Debtor in the Property (as defined below) and intended to be duly recorded in the Office of the County Recorder for Maricopa County, Arizona. All terms not defined herein shall have the meaning ascribed to them in the Security Instrument.

Pursuant to the Security Instrument, Debtor irrevocably granted, bargained, sold, pledged, assigned, warranted, transferred and conveyed for the benefit of Secured Party, and granted a security interest to Secured Party in the following property, rights, interests and estates now owned, or hereafter acquired by Debtor (collectively, the "**Property**"):

(a) Land. The real property described in Exhibit B attached hereto and made a part hereof (collectively, the "**Land**"):

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(b) Additional Land. All additional lands, estates and development rights hereafter acquired by Debtor for use in connection with the Land and the development of the Land and all additional lands and estates therein which may, from time to time, by supplemental instrument or otherwise be expressly made subject to the lien of the Security Instrument;

(c) Intentionally Omitted.

(d) Improvements. The buildings, structures, fixtures, additions, enlargements, extensions, modifications, repairs, replacements and improvements now or hereafter erected or located on the Land (collectively, the "**Improvements**"):

(e) Easements. All easements, rights-of-way or use, rights, strips and gores of land, streets, ways, alleys, passages, sewer rights, water, water courses, water rights and powers, air rights and development rights, and all estates, rights, titles, interests, privileges, liberties, servitudes, tenements, hereditaments and appurtenances of any nature whatsoever, in any way now or hereafter belonging, relating or pertaining to the Land and the Improvements, and the reversions and remainders, and all land lying in the bed of any street, road or avenue, opened or proposed, in front of or adjoining the Land, to the center line thereof and all the estates, rights, titles, interests, rights of dower, rights of curtesy, property, possession, claim and demand whatsoever, both at law and in equity, of Debtor of, in and to the Land and the Improvements, and every part and parcel thereof, with the appurtenances thereto;

(f) **Equipment**. All "equipment," as such term is defined in Article 9 of the Uniform Commercial Code (as hereinafter defined), now owned or hereafter acquired by Debtor, which is used at or in connection with the Improvements or the Land or is located thereon or therein (including, but not limited to, all machinery, equipment, furnishings, and electronic data-processing and other office equipment now owned or hereafter acquired by Debtor and any and all additions, substitutions and replacements of any of the foregoing), together with all attachments, components, parts, equipment and accessories installed thereon or affixed thereto (collectively, the "**Equipment**"). Notwithstanding the foregoing, Equipment shall not include any property belonging to tenants under leases except to the extent that Debtor shall have any right or interest therein;

(g) Fixtures and Personal Property. All Equipment now owned, or the ownership of which is hereafter acquired, by Debtor which is so related to the Land and Improvements forming part of the Property that it is deemed fixtures or real property under the law of the particular state in which the Equipment is located, including, without limitation, all building or construction materials intended for construction, reconstruction, alteration or repair of or installation on the Property, construction equipment, appliances, machinery, plant equipment, fittings, apparatuses, fixtures and other items now or hereafter attached to, installed in or used in connection with (temporarily or permanently) any of the Improvements or the Land, including, but not limited to, engines, devices for the operation of pumps, pipes, plumbing, cleaning, call and sprinkler systems, fire extinguishing apparatuses and equipment, heating, ventilating, laundry, incinerating, electrical, air conditioning and air cooling equipment and systems, gas and electric machinery, appurtenances and equipment, pollution control equipment, security systems, disposals, dishwashers, refrigerators and ranges, recreational equipment and facilities of all kinds, and water, gas, electrical, storm and sanitary sewer facilities, utility lines and equipment (whether owned individually or jointly with others, and, if owned jointly, to the extent of Debtor's interest therein) and all other utilities whether or not situated in easements, all water tanks, water supply, water power sites, fuel stations, fuel tanks, fuel supply, and all other structures, together with all accessions, appurtenances, additions, replacements, betterments and substitutions for any of the foregoing and the proceeds thereof (collectively, the "**Fixtures**") and all furniture, furnishings, objects of art, machinery, goods, tools, supplies, appliances, general intangibles, contract rights, accounts, accounts receivable, franchises, licenses, certificates and permits, and all other personal property of any kind or character whatsoever as defined in and subject to the provisions of the Uniform Commercial Code, other than Fixtures, which are now or hereafter owned by Debtor and which are located within or about the Land and the Improvements, together with all accessories, replacements and substitutions thereto or therefor and the proceeds thereof (collectively, the "**Personal Property**"), and the right, title and interest of Debtor in and to any of the Personal Property which may be subject to any security interests, as defined in the Uniform Commercial Code, as adopted and enacted by the state or states where any of the Property is located (the "**Uniform Commercial Code**"), superior in lien to the lien of the Security Instrument and all proceeds and products of the above;

(h) Leases and Rents. All leases, subleases, subsubleases, lettings, licenses, concessions or other agreements (whether written or oral) pursuant to which any Person is granted a possessory interest in, or right to use or occupy all or any portion of the Land and the Improvements, and every modification, amendment or other agreement relating to such leases,

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subleases, subsubleases, or other agreements entered into in connection with such leases, subleases, subsubleases, or other agreements and every guarantee of the performance and observance of the covenants, conditions and agreements to be performed and observed by the other party thereto, heretofore or hereafter entered into, whether before or after the filing by or against Debtor of any petition for relief under any Creditors Rights Laws (collectively, the "**Leases**") and all right. title and interest of Debtor, its successors and assigns therein and thereunder, including, without limitation, cash, letters of credit or securities deposited thereunder to secure the performance by the lessees of their obligations thereunder and all rents, additional rents, rent equivalents, moneys payable as damages or in lieu of rent or rent equivalents, royalties (including, without limitation, all oil and gas or other mineral royalties and bonuses), income, receivables, receipts, revenues, deposits (including, without limitation, security, utility and other deposits), accounts, cash, issues, profits, charges for services rendered, and other consideration of whatever form or nature received by or paid to or for the account of or benefit of Debtor or its agents or employees from any and all sources arising from or attributable to the Property, including, all receivables, customer obligations, installment payment obligations and other obligations now existing or hereafter arising or created out of the sale, lease, sublease, license, concession or other grant of the right of the use and occupancy of property or rendering of services by Debtor or Manager and proceeds, if any, from business interruption or other loss of income insurance whether paid or accruing before or after the filing by or against Debtor of any petition for relief under any Creditors Rights Laws (collectively, the "**Rents**") and all proceeds from the sale or other disposition of the Leases and the right to receive and apply the Rents to the payment of the Debt;

(i) Insurance Proceeds. All insurance proceeds in respect of the Property under any Policies covering the Property, including, without limitation, the right to receive and apply the proceeds of any insurance, judgments, or settlements made in lieu thereof, for damage to the Property (collectively, the "**Insurance Proceeds**"):

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(j) Condemnation Awards. All awards or payments, including interest thereon, which may heretofore and hereafter be made with respect to the Property by reason of any taking or condemnation, whether from the exercise of the right of eminent domain (including, but not limited to, any transfer made in lieu of or in anticipation of the exercise of the right), or for a change of grade, or for any other injury to or decrease in the value of the Property (collectively, the "**Awards**"):

(k) Tax Certiorari. All refunds, rebates or credits in connection with reduction in real estate taxes and assessments charged against the Property as a result of tax certiorari or any applications or proceedings for reduction;

(l) Rights. The right, in the name and on behalf of Debtor, to appear in and defend any action or proceeding brought with respect to the Property and to commence any action or proceeding to protect the interest of Secured Party in the Property;

(m) Agreements. All agreements, contracts, certificates, instruments, franchises, permits, licenses, plans, specifications and other documents, now or hereafter entered into, and all rights therein and thereto, respecting or pertaining to the use, occupation, construction, management or operation of the Land and any part thereof and any

Improvements or any business or activity conducted on the Land and any part thereof and all right, title and interest of Debtor therein and thereunder, including, without limitation, the right, upon the happening of any Event of Default under the Security Instrument, to receive and collect any sums payable to Debtor thereunder and all management, service, supply and maintenance contracts and agreements (collectively, the "**Agreements**");

(n) Intangibles. All tradenames, trademarks, servicemarks, logos, copyrights, goodwill, books and records and all other general intangibles relating to or used in connection with the operation of the Property;

(o) Accounts. All reserves, escrows and deposit accounts maintained by Debtor with respect to the Property, including, without limitation, the Accounts; together with all deposits or wire transfers made to such accounts and all cash, checks, drafts, certificates, securities, investment property, financial assets, instruments and other property held therein from time to time and all proceeds, products, distributions or dividends or substitutions thereon and thereof;

(p) Interest Rate Protection Agreement. The Interest Rate Protection Agreement, including, but not limited to, all "accounts:, "chattel paper", "general intangibles" and "investment property" (as such terms arc defined in the Uniform Commercial Code as from time to time in effect) constituting or relating to the foregoing; and all products and proceeds of any of the foregoing;

(q) Proceeds. All proceeds of the conversion, voluntary or involuntary, of any of the foregoing items, including, without limitation, Insurance Proceeds and Awards, whether cash, liquidation or other claims, or otherwise; and

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(r) Other Rights. Any and all other rights of Debtor in and to the items set forth in subsections (a) through (q) above.